

S.S. Industries v. State of U.P.

Allahabad High Court · Division Bench · 17 November 2017 · WRIT-C No. 54632 of 2017 · **Writ disposed; three equal instalments fixed and reconnection directed.**

HEADNOTE

After the Power Corporation disconnected supply without acting on a prior direction to extend the Clause 6.14 instalment facility despite a partial deposit of dues, the High Court itself fixed three equal instalments for the balance and directed restoration on deposit of the next instalment within a week.

FACTUAL SUMMARY

S.S. Industries had obtained an order dated 13 September 2017 in Writ-C No. 42704 of 2017 directing the Power Corporation to extend the Clause 6.14 instalment benefit of the U.P. Electricity Supply Code, 2005 and to pass an appropriate order within two weeks of a certified copy. The petitioner deposited Rs.40,000 towards electricity dues. The licensee nevertheless disconnected the connection without considering that request, prompting this second writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility and restoration after disconnection

HOLDING

On the licensee's failure to extend Clause 6.14 instalments as previously directed, and after disconnection despite a Rs.40,000 deposit, the Court itself fixed three equal instalments for the balance electricity dues. Restoration was ordered forthwith subject to deposit of the next instalment within one week (by 25 November 2017); the remaining two instalments were payable on the 25th of each succeeding month. The writ was disposed of on those terms. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 After the licensee ignored a prior 6.14 direction and disconnected despite a partial deposit, the Court itself fixed three equal instalments for the balance and tied restoration to the next deposit. ¶ 1